

UNITED ARAB EMIRATES
MINISTRY OF HUMAN RESOURCES
& EMIRATISATION



الإمارات العربية المتحدة
وزارة الموارد البشرية
والتوظيف

Federal Decree-Law No. (33) of 2021 Regarding the Regulation of Employment Relationships and its amendments



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**Federal Decree-Law No. (33) of 2021
Regarding the Regulation of
Employment Relationships**

Federal Decree-Law No. (33) of 2021 Regarding the Regulation of Employment Relationships

**We, Khalifa bin Zayed Al Nahyan -
President of the United Arab Emirates State**

- After reviewing the Constitution;
- Federal Law No. (1) of 1972 regarding the Competencies of Ministries and Powers of Ministers and its amendments;
- Federal Law No. (6) of 1973 regarding the Entry and Residence of Foreigners and its amendments;
- Federal Law No. (8) of 1980 regarding the Regulation of Employment Relationships and its amendments;
- Federal Law No. (3) of 1987 promulgating the Penal Code and its amendments;
- Federal Law No. (10) of 1992 promulgating the Law of Evidence in Civil Transactions and its amendments;
- Federal Law No. (11) of 1992 regarding Civil Procedures and its amendments;
- Federal Law No. (35) of 1992 promulgating the Criminal Procedural Law and its amendments;
- Federal Law No. (7) of 1999 promulgating the Pensions and Social Security Law and its amendments;
- Federal Law No. (29) of 2006 regarding the Rights of People with Disabilities and its amendments;
- Federal Decree-Law No. (2) of 2015 regarding Combating Discrimination and Hatred and its amendments;
- Federal Law No. (13) of 2016 regarding Judicial Fees before the Federal Courts;
- Federal Law No. (14) of 2016 regarding Violations and Administrative Penalties in the Federal Government;
- Federal Law No. (13) of 2020 regarding Public Health; and
- Based on the proposal of the Minister of Human Resources and Emiratisation, and the approval of the Cabinet;

Issued the following Decree-Law:

Article (1)

► Definitions

In the application of the provisions hereof, the following terms and expressions shall have the meanings assigned to each of them, unless the context requires otherwise:

State	:	United Arab Emirates.
Ministry	:	Ministry of Human Resources and Emiratization.
Minister	:	Minister of Human Resources and Emiratization.
Private Sector	:	Companies, institutions, establishments or any other entities wholly owned by individuals or in partnership with federal or local government, companies and institutions wholly owned by the federal or local government, unless the laws of their establishment stipulate that they shall be subject to the provisions of another law.
Establishment	:	Every economic, technical, industrial, commercial unit or other categories approved in the State, employing workers and aiming at producing goods, marketing them or providing services and licensed by the competent authorities.
Employer	:	Every natural or legal person, who employs one or more workers in return for a wage.
Worker	:	Every natural person authorised by the Ministry to work for one of the licensed establishments in the State, under supervision and direction of the employer.
Juvenile	:	Every person who has reached fifteen years old but has not yet exceeded eighteen years old.
Work	:	Every human, intellectual, technical or physical effort performed according to different types of work.
Work Permit	:	A document issued by the Ministry, according to which a natural person is allowed to work for the licensed establishment.

Employment Contract	:	Every agreement concluded between the employer and worker, under which the latter is committed to working for the service of the employer and under its supervision and guidance, in consideration of a wage payable by the employer, in accordance with the standard contract forms defined by the Implementing Regulation hereof.
Probationary Period	:	The period that may be required by the employer, which enables the latter to evaluate the performance of the worker and allows the worker to become familiar with his job duties and the work environment, according to which the employment contract is either continued or terminated as per the provisions hereof.
Notice Period	:	The notice period specified in the employment contract, which requires both parties to the contract to abide by it in case either of them wishes to terminate the employment contract.
Basic Wage	:	The wage stipulated in the employment contract, which is paid to the worker in consideration of his work under the employment contract, on a monthly, weekly, daily, hourly or piecework basis, and which does not include any other allowances or benefits in-kind.
Wage	:	The basic wage, in addition to the cash allowances and benefits in-kind allocated to the worker under the employment contract or this Decree-Law, and which may include: benefits in-kind that the employer shall grant to the worker or their cash equivalent, if allocated as part of the wage in the employment contract or the establishment's by-laws; the allowances that the worker is entitled to obtain in return for his effort, the risks he is exposed to while performing his work or for any other reasons; or the allowances granted to meet the cost of living, a percentage of sales, or a percentage of the profits paid for what the worker markets, produces or collects.
Working Day	:	The official working day defined by the implementing resolutions of this Decree-Law.

Workplace	:	The work location agreed upon in the employment contract, or in which the worker undertakes the agreed tasks and services for the employer.
Continuous Service	:	Uninterrupted service with the same employer or its legal successor, from the date of commencement of work.
Day Worker	:	Each worker receiving a daily wage.
Work Injury	:	Being exposed to one of the occupational diseases specified in the table issued by a resolution of the Cabinet, or any other injuries arising therefrom, due to or occurring in the course of work. Any injury should be considered a work injury if it is proven that the accident happened to the worker during the period of his commute to and from work, without interruption or deviation from the normal route.
Medical Entity	:	Any federal or local government entity concerned with health affairs or any private health establishment licensed to provide health services in the State.
Worker's Family	:	Spouse, sons and daughters.
Individual Labour Disputes		Every dispute arising between an employer and worker alone, whose subject is related to this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation.
Collective Labour Disputes	:	Every dispute arising between an employer and its workers, whose subject is related to a common interest of all workers or a group of them.

Article (2)

► Objectives

This Decree-Law is intended to achieve the following:

1. Ensuring the efficiency of the UAE labour market by supporting the attraction and retention of future skills and talents and providing an attractive business environment for employers, with the aim of enabling both parties to contribute to the achievement of the UAE's national development goals;
2. Regulating employment relationships and defining the rights and obligations of the parties to this legal relationship in a balanced manner;
3. Enhancing the flexibility and sustainability of the UAE labour market through ensuring the protection of the parties to the employment relationship, its developments and the exceptional circumstances that they may face and would thereby affect such relationship;
4. Improving and developing the capabilities and skills of workers in the private sector, in a manner that enhances the efficiency and productivity of the workforce in the UAE labour market; and
5. Providing protection to both parties to the employment relationship and enabling them to obtain their rights within the framework hereof.

Article (3)

► Scope of Application

1. The provisions hereof shall apply to all establishments, employers and workers in the UAE private sector.
2. The following categories shall not be subject to the provisions hereof
 - a. Employees of federal and local government entities;
 - b. Employees of the armed forces, police and security; and
 - c. Domestic workers.
3. The Cabinet may, upon the Minister's proposal, exclude any category from being subject to all or some of the provisions hereof and specify the legislation to be applied thereto.

Article (4)

► Equality and Non-discrimination

1. Any discrimination on the basis of race, colour, sex, religion, national or social origin or disability which would have the effect of nullifying or impairing equality of opportunity, or prejudicing equal treatment in the employment, the maintenance of a job and the enjoyment of its benefits, is prohibited. Employers are prohibited to discriminate against workers in jobs involving similar tasks.
2. Rules and regulations that aim to enhance the participation of UAE citizens in the labour market shall not constitute discrimination.
3. Without prejudice to the rights established for working women stipulated herein, all provisions regulating the employment of workers without discrimination, shall apply to working women.
4. A woman is granted a wage equal to the wages of a man if she performs the same work, or an alternative work of equal value. By a resolution of the Cabinet, upon the Minister's proposal, the procedures, terms and standards necessary for evaluating work of equal value shall be issued.

Article (5)

► Employment of Juveniles

1. It is not permissible to employ any person under the age of fifteen years old.
2. The following conditions are required to employ a juvenile:
 - a. Written consent of the juvenile's guardian or custodian.
 - b. A certificate issued by the medical entity proving the health fitness of the juvenile to undertake the required work.
 - c. The actual working hours shall not exceed six hours per day and shall include one break or more, which shall not be less than one hour in total, and this period(s) shall be defined, so that the juvenile does not work for more than four consecutive hours.
 - d. The juvenile shall not work between 7 pm and 7 am.
 - e. The juvenile shall not be employed in dangerous or arduous works, or in works which, by their nature, are likely to harm his health, safety or morals and which are defined by a resolution of the Minister in coordination with the concerned authorities.
 - f. The juvenile shall not work overtime, be kept in the workplace after the prescribed hours or work on weekends or official holidays.
3. The Implementing Regulation hereof shall specify the juvenile employment, the procedures to which the employer is committed, the works in which the employment of the juvenile is prohibited and the rules for excluding the entities that aim at training and qualifying juveniles professionally, including charitable, educational and training institutions, from some provisions of this Article.

Article (6)

► Recruitment and Employment of Workers

1. It is not permissible to undertake work in the UAE and the employer may not recruit or employ any worker, except after obtaining a work permit from the Ministry as per the provisions of this Decree-Law and its Implementing Regulation.
2. The Implementing Regulation hereof shall specify the terms, conditions, types of work permits and procedures for granting, renewing and cancelling the same.
3. It is not permissible to undertake the activity of employment or mediation to recruit or employ workers, except with a licence from the Ministry, in accordance with the conditions and procedures specified in the Implementing Regulation hereof.
4. The employer is prohibited from charging the worker for the fees and costs of recruitment and employment or collecting them from him, whether directly or indirectly.
5. The Minister, in coordination with the concerned entities in the State, shall issue the resolutions regulating jobs, in which the recruitment and employment of workers are prohibited, as well as the rules of the same.

Article (7)

► Work Patterns

1. The patterns of work to be contracted upon shall be in line with the following:
 - a. Full time; which means working for one employer for full daily working hours throughout the working days.
 - b. Part time; which means working for one or more employers for a specified number of working hours or days designated for work.
 - c. Temporary work; which is work whose execution requires a specific period, or is based on a certain task and is ended by its completion.
 - d. Flexible work; which is work whose hours or working days change according to the work load, as well as the economic and operational variables of the employer. The worker may work for the employer at variable times according to the work conditions and requirements.
 - e. Any other patterns of work specified by the Implementing Regulation hereof.
2. The Implementing Regulation specifies the conditions and rules of the work patterns and the obligations of both the worker and employer, according to each pattern.

Article (8)

► Employment Contract

1. The employer shall conclude an employment contract with the worker, according to the agreed work pattern. The contract shall be made in two copies; one copy shall be kept by the employer and the other shall be handed over to the worker, as per the forms specified by the Implementing Regulation hereof.
2. The worker or his representative may prove by all possible means of proof the employment contract, the amount of the wage and any of the rights he is entitled to receive under the provisions of this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation.
3. contract of employment shall be concluded for a specified period of time, subject to renewal, in accordance with the agreement of both parties. *
4. In case of extending or renewing the contract, the new term(s) shall be considered an extension of the original term and shall be added to it while calculating the worker's continuous term of service.
5. If both parties continue to implement the contract after the expiry of its original term or the completion of the agreed work without an express agreement, the original contract is considered implicitly extended as per the same conditions set forth therein.
6. Subject to Clause (3) of this Article, the Implementing Regulation hereof shall specify the forms of employment contracts according to the approved skill levels and the provisions for changing the contract from one work pattern to another, and register them at the Ministry.

* In accordance with Federal Decree-Law No. (14) of 2022 regarding amending some provisions of Federal Decree-Law No. (33) of 2021 Regarding the Regulation of Employment Relations

Article (9)

► Probationary Period

1. The employer may appoint the worker under a probationary period not exceeding (6) six months from the date of commencement of work. The employer may terminate the service of the worker during this period after notifying the latter of the same in writing fourteen (14) days at least before the date specified for the termination of service.
2. It is not permissible to appoint a worker under probationary period more than once at one employer, and if the worker successfully passes the probationary period and continues to work, the contract shall become valid according to the agreed terms. This period shall be counted within the term of service.
3. If the worker wishes to move during the probationary period, to work for another employer in the State, he shall notify the original employer of the same in writing within not less than one month from the date of his wish to terminate the contract. Then, the new employer shall compensate the original employer for the costs of recruitment or contracting with the worker, unless otherwise agreed upon.
4. If the foreign worker wishes to terminate the employment contract during the probationary period, to leave the State, he shall notify the employer of the same in writing not less than fourteen (14) days from the date specified for the termination of the contract. If he wishes to return to the State and obtain a new work permit within (3) three months from the date of departure, the new employer shall pay the compensation stipulated in Clause (3) of this Article, unless in case of an agreement between the worker and the original employer to the contrary.
5. If either party terminates the employment contract without taking into consideration the provisions of this Article, it shall pay to the other party compensation equal to the worker's wages for the notice period or the remaining period of the notice period.
6. If the foreign worker leaves the State without abiding by the provisions of this Article, he shall not be granted a work permit to work in the State for one year from the date of leaving the State.
7. The Ministry may exclude some job categories, skill levels or workers from the condition of not granting a work permit, stipulated in Clauses (4) and (6) of this Article, in accordance with the rules and procedures specified by the Implementing Regulation hereof.

Article (10)

► Non-competition Clause

1. If the work assigned to the worker allows him to gain knowledge of the employer's clients or have access to its work secrets, the employer may require that the worker under the employment contract shall not, after the expiry of the contract, compete with the employer or be engaged in any competing project in the same sector, provided that the requirement is specified, in terms of time, place and type of work, to the extent necessary to protect the legitimate business interests. The non-competition period shall not be more than two years from the expiry date of the contract.
2. This requirement shall be nullified if the employer terminates the employment contract in violation of the provisions hereof.
3. The claim filed by the employer for the worker's violation of the provisions of this Article shall not be heard if one year has passed from the date of discovering the violation.
4. The Implementing Regulation hereof defines the provisions regulating this Article, skill levels or occupations that may be excluded from the provision of Clause (1) of this Article, in accordance with the conditions and rules specified by the Regulation.

Article (11)

► An Employer Outsourcing some of its Works to Another Employer

The employer may outsource and assign the performance of any of its original works or part thereof to another employer and the latter shall be solely liable in this case for the rights of his workers who are undertaking this work, which accrue to them in accordance with the provisions hereof, unless otherwise agreed by both parties.

Article (12)

► Assigning the Worker to Another Job

1. The worker may not be assigned to undertake work that is fundamentally different from the work agreed upon in the employment contract, unless it is necessary in order to prevent the occurrence of an accident or to rectify the resulting damages, provided that the assignment is temporary and in accordance with what is specified in the Implementing Regulation hereof.
2. In cases other than those mentioned in Clause (1) of this Article, the employer may assign the worker to undertake work not agreed upon in the employment contract, provided that the worker provides his consent in writing.
3. If the worker has to change his place of residence in order to be able to undertake work that is different from the work agreed upon in the employment contract, the employer shall bear all the financial costs arising therefrom, including the costs of the worker's relocation and residence.

Article (13)

► Employer's Obligations

The employer shall comply with the following:

1. Maintaining the workers' files and records as per the conditions, rules and procedures issued by a resolution of the Ministry, provided that the period of keeping the worker's file shall not be less than two years after the date of the worker's end of service;
2. Not withholding the official documents of the worker or forcing him to leave the State at the end of the employment relationship;
3. Providing rules regarding the organisation of work, such as the regulation of work instructions, penalties, promotions, rewards and other by-laws and regulations, according to the rules specified by the Implementing Regulation hereof;
4. Providing the worker with proper accommodation licensed by the competent authorities in accordance with the rules, conditions and standards in force in the State, or paying to him an accommodation allowance in cash or including it in the wage;
5. Investing in the development of the skills of workers working for its service and providing the minimum amount of training, qualification and empowerment tools and programmes as per the provisions of this Decree-Law and its Implementing Regulation;

6. Providing the necessary means of prevention to protect workers from the risks of occupational diseases and injuries that may occur during work, ensuring the provision of regulations on guidance and awareness, providing appropriate training for workers to avoid such risks, conducting periodic evaluation to ensure that all parties to the employment relationship comply with and meet the requirements of health and occupational security and safety, in accordance with the provisions of this Decree-Law, its Implementing Regulation and the legislation in force in this regard;
7. Taking the necessary actions to ensure that the worker is aware of his rights and obligations at work, according to the tools and methods appropriate to the nature of the work and the workers therein;
8. Bearing the costs of the worker's medical care in accordance with the legislation in force in the State;
9. Bearing the expenses of insurances, contributions and guarantees defined by the legislation in force;
10. Not allowing the worker to work for others, except in accordance with the provisions hereof;
11. Giving the worker, as per his request and upon expiry of the employment contract, a certificate of experience, without fees, indicating the date of his commencement of work, the date of its expiry, his entire service term, job title or type of work he was performing, the last wage he was receiving and the reason for the termination of the employment contract, provided that the certificate does not include anything that may harm the worker's reputation or limit his chances of finding new job opportunities;
12. Bearing the repatriation expenses of the worker to his place of recruitment or any other place that both parties had agreed upon, unless he has already joined the service of another employer or unless the reason for terminating the contract was attributed to the worker, then that the latter shall be liable for incurring those expenses;
13. Providing a safe and appropriate work environment; and
14. Any other obligations stipulated under the provisions of this Decree-Law, its Implementing Regulation, resolutions of the Cabinet or any other legislation in force in the State.

Article (14)

► Prohibition of Forced Labour and Other Prohibitions

1. The employer shall not use any means that would oblige or force the worker, threaten him with any penalty to work for it, or compel him to undertake work or provide a service against his will.
2. Sexual harassment, bullying or any verbal, physical or psychological violence committed against the worker by the employer, his superiors at work, colleagues or the persons who work with him, are prohibited.

Article (15)

► Worker's Entitlements at the Time of his Death

1. In case of the worker's death, the employer may hand over the worker's family, any wages or financial entitlements due to the worker, in addition to the end-of-service benefits the worker is entitled to, in accordance with the provisions of this Decree-Law and its Implementing Regulation, within a period not exceeding (10) ten days from the date of death or from the date on which the employer became aware of the death of the worker.
2. Subject to the provision of Clause (1) of this Article, the worker may specify in writing the concerned person from his family to receive his rights in case of his death.
3. The employer shall bear all the costs of preparing and transporting the corpse of the deceased worker to his home country or place of residence if his family so requests.
4. The Ministry may, in coordination with the concerned authorities, set a mechanism to keep the worker's entitlements in case of his death if it was not possible to hand them over to his family or those entitled to receive them.

Article (16)

► Worker's Obligations

The worker shall abide by the following:

1. Performing the work by himself according to the direction and supervision of the employer or anyone acting on its behalf, and in accordance with the contract, and not outsourcing the work to any worker or any other person;
2. Being committed to good behaviour and morals while undertaking work and adhering to honesty and professional integrity;
3. Preserving the production means and work tools in his custody and maintaining them by taking the necessary actions to preserve them in the places designated for them;
4. Keeping the confidentiality of information and data to which he has access by virtue of his work, not disclosing the work's secrets and returning the items in his custody to the employer at the end of his service;
5. Not keeping personally any original papers or hard or soft copies of documents related to work secrets without the permission of the employer or its representative;
6. Implementing the occupational safety and health instructions prescribed at the establishment as per the legislation in force or work regulations and instructions;
7. Working during the approved working days and working hours specified in the employment contract, communicating and responding in an efficient manner to complete the duties assigned to him efficiently;
8. Continuously and diligently working to develop his functional and professional skills and enhancing the performance level he provides for the employer;
9. Not working for others, in violation of the provisions hereof and other applicable legislation in this regard;
10. Evacuating the accommodation provided by the employer, within a period not exceeding (30) thirty days from the date of end of his service. However, the worker may stay in the accommodation after the end of the said period, in case of the employer's approval, and the worker shall bear the cost of stay or as agreed upon in writing with the employer; and
11. Any other obligations prescribed under the provisions of this Decree-Law and its Implementing Regulation or any other legislation in force in the State.

Article (17)

► Working Hours

1. The maximum normal working hours for workers shall be (8) eight hours per day or (48) forty-eight hours per week.
2. The Cabinet may, based on the Minister's proposal and in coordination with the concerned authorities, increase or reduce the daily working hours for some economic sectors or some categories of workers, as well as the working hours, break and hours during which it is prohibited to work for certain categories of workers, according to the workers' classification specified in the Implementing Regulation hereof.
3. The periods spent by the worker during the commute between his place of residence and the workplace, shall not be counted in the working hours, except for some categories of workers in accordance with the rules defined in the Implementing Regulation hereof.
4. The Implementing Regulation hereof specifies the working hours in Ramadan.
5. If the worker works based on a pattern other than the full-time pattern, the original employer, or any other employer for which the worker works in accordance with the provisions hereof, may not ask the worker to work for it more than the hours agreed upon in the employment contract, except with the written consent of the worker.
6. If the worker wishes to perform his work remotely, whether inside or outside the State, with the approval of the employer, the latter may require specific working hours.

► Article (18)

Consecutive Working Hours

The worker may not work for more than (5) five consecutive hours without a break or breaks of not less than an hour in total, provided that these periods are not included in the working hours. Working hours and breaks shall be arranged at an establishment working according to shifts or for some job categories, as per their nature, such as field jobs, and according to the workers' classification specified in the Implementing Regulation hereof.

Article (19)

► Overtime

1. The employer may instruct the worker to work overtime over the normal working hours, provided that they do not exceed two hours per day. The worker may not be instructed to work for more than that period, except in accordance with the conditions and rules specified by the Implementing Regulation hereof. In all cases, the total working hours shall not exceed (144) one hundred and forty four hours every (3) three weeks.
2. If the work conditions necessitate that the worker works for more than the normal working hours, the excess period shall represent overtime, for which the worker shall receive a wage equal to the wage corresponding to the normal working hours, which is calculated according to the basic wage plus an increase of not less than (25 %) twenty five percent of that wage.
3. If the work conditions require that the worker works overtime between 10 pm and 4 am, the worker shall be entitled, regarding the overtime, to receive the wage prescribed for the normal working hours calculated according to the basic wage plus an increase of not less than (%50) fifty percent of that wage. The workers working based on shifts shall be excluded from this clause.
4. If the circumstances require that the worker works on the weekend specified in the employment contract or work regulation, he shall be compensated with another day off or he shall be paid the wage of that day according to the wage established for normal working days, plus an increase of not less than (%50) fifty percent of the basic wage for that day.
5. A worker shall not be instructed to work for more than two consecutive weekend days, except for day workers.

► Article (20)

Excluded Workers Categories

The Implementing Regulation hereof defines the categories of workers who may be excluded from the provisions stipulated regarding the working hours contained herein.

Article (21)

► Weekend

The worker shall be granted a paid weekend of not less than one day, according to the employment contract or the work regulation. It is permissible under a resolution of the Cabinet to increase the weekend day stipulated in this Article.

Article (22)

► Defining the Amount or Type of Wage and its Payment

1. The amount or type of wage shall be specified in the employment contract, and if it is not specified, the competent court shall specify it as a labour dispute.
2. The employer shall pay the salaries or wages to its workers on their due dates in accordance with the regulations approved in the Ministry, as well as the conditions, rules and procedures specified by the Implementing Regulation hereof.
3. The salaries shall be paid in UAE Dirham and may be paid in another currency if it is agreed upon between both parties in the employment contract.

Article (23)

► Method of Calculating the Wages of Workers on Piecework Basis

The daily wage of workers who receive their wages on piecework basis shall be calculated according to the average amount the worker received for the actual working days during the (6) six months preceding the request or claim regarding any issue related to the wage.

Article (24)

► Transferring the Worker with a Monthly Wage to other Categories

A worker with a monthly wage may be transferred to the category of day workers or workers hired for a weekly wage, per piecework or hour, if the worker agrees on the same in writing, without prejudice to the rights acquired by the worker during the period he worked on a monthly wage.

Article (25)

► Cases of Deduction or Withhold from the Worker's Wage

1. No amount may be deducted or withheld from the worker's wage except in the following cases:
 - a. The redemption of loans granted to the worker, within the maximum limit of the monthly deduction percentage from the worker's wage stipulated in this Article, after obtaining the worker's written consent and without any interest;
 - b. The redemption of the amounts paid to the worker in excess of his entitlements, provided that the amount deducted does not exceed (%20) twenty percent of the wage;
 - c. The amounts deducted for the purposes of calculating the contributions in bonuses, retirement pensions and insurances according to the legislation in force in the State;
 - d. The worker's contributions to the Savings Fund at the establishment or the loans payable to the Fund approved by the Ministry;
 - e. Installments for any social project or any other benefits or services provided by the employer and approved by the Ministry, provided that the worker agrees in writing to participate in the project;
 - f. Amounts deducted from the worker due to violations he commits, according to the regulation of penalties in force at the establishment and approved by the Ministry, provided that they shall not exceed (%5) five percent of the wage;
 - g. Debts due pursuant to a judgment, without exceeding a quarter of the wage payable to the worker, except for the awarded alimony debt, as more than a quarter of the wage may be deducted. In case of several debts, the amounts to be paid shall be distributed as per the privilege categories;
 - h. Amounts necessary to rectify the damage caused by the worker, as a result of his mistake or violation of the employer's instructions, which led to the destruction, demolition or loss of tools, machines, products or materials owned by the employer, provided that the deducted amounts do not exceed the wage of (5) five days per month. It is not permissible to deduct an amount greater than that except with the approval of the competent court.
2. If there are many reasons for deduction or withholding from the wage, in all cases the percentage of deduction and/or withholding may not exceed (%50) fifty percent of the wage.

Article (26)

► Enabling the Worker to Work

1. The wage is paid in exchange for work and the employer shall allow the worker to carry out his work. Otherwise, it shall be obliged to pay the wage agreed upon.
2. The Implementing Regulation defines the procedures for the worker to quit work if he is not allowed to perform the work agreed upon in the employment contract.

Article (27)

► Minimum Wage

The Cabinet may, upon the proposal of the Minister and in coordination with the concerned authorities, issue a resolution to determine the minimum wage for workers or any category thereof.

Article (28)

► Public Holidays and Worker's Work during Holidays

1. The worker shall be entitled to official days off with full pay on public holidays, which are defined by a resolution of the Cabinet.
2. If work conditions require that the worker works during any of the public holidays, the employer shall compensate him with another day off for each day, on which he works during the holiday, or pay him the wage for that day according to the wage established for the normal working days, plus an increase of not less than (%50) fifty percent of the basic wage for that day.

Article (29)

► Annual Leave

1. Without prejudice to the worker's acquired rights for the period preceding the date of enforcement of the provisions of this Decree-Law, the worker shall be entitled to an annual leave with full wage, of not less than;
 - a. Thirty days for each year of extended service;
 - b. Two days for each month if his service term is more than six months and less than a year;
 - c. A leave for parts of the last year he spent at work if his service is ended before using his annual leave balance.

2. The part-time worker shall be entitled to an annual leave according to the actual working hours the worker spends working for the employer and its period shall be defined in the employment contract, in accordance with what is stipulated in the Implementing Regulation hereof.
3. The employer may agree to grant the worker a leave from his annual leave balance during the probationary period, while the worker shall reserve his right to be compensated for the remainder of his annual leave balance in case he does not pass the probationary period.
4. The worker shall obtain his leave in its entitlement year and the employer may specify the dates of these leaves according to work requirements and in agreement with the worker, or grant them alternately among the establishment's workers, in order to secure its work progress. The employer shall notify the worker of the specified date for his leave within a sufficient time of not less than a month.
5. The worker may, with the approval of his employer and in accordance with the applicable regulations at the establishment, carry forward his annual leave balance or days thereof to the following year.
6. The worker shall be entitled to the wage for the period of his annual leave.
7. The holidays prescribed by law or by agreement are included in the calculation of the annual leave period if they fall within the annual leave of the worker and they form a part thereof, unless the employment contract or the regulations in force at the establishment provide for anything that is more useful for the worker.
8. The employer may not prevent the worker from benefiting from his annual leave accrued for more than two years, unless the worker wishes to carry it forward or receive a cash allowance for it, in accordance with the regulations in force at the establishment and the Implementing Regulation hereof.
9. The worker shall be entitled to a wage for the accrued leave days if he quits the work before using them, regardless of the leave duration, with respect to the period for which he did not obtain his leave. He shall also be entitled to receive leave wage for parts of the year in proportion to the period he spent in work and it shall be calculated according to the basic wage.
10. The Implementing Regulation hereof defines the rules and conditions for regulating leaves and their compensation.

Article (30)

► Maternity Leave

1. The female worker shall be entitled to a maternity leave of (60) sixty days, according to the following:
 - a. The first (45) forty-five days with full wage; and
 - b. The following (15) fifteen days with half wage.
2. The female worker may, after using the maternity leave, be absent from work without a wage for a period not exceeding continuous or intermittent (45) forty-five days. If this absence is due to her sickness or her child's sickness resulting from pregnancy or childbirth, which does not allow her to return to her work. Such sickness shall be proven by a medical certificate issued by the medical entity. This period is not included within the service term, for which the female worker is entitled to end of service benefits or the period of contribution in the retirement scheme in accordance with the legislation in force in this regard.
3. The female worker shall be entitled to the maternity leave mentioned in Clause (1) of this Article if the delivery took place (6) six months or more after pregnancy, whether the fetus was born dead or alive and then died.
4. If the female worker gives birth to a sick child or a child of determination, whose health condition requires a constant companion, according to a medical report issued by the medical entity, she has the right to a leave of thirty (30) days with full pay starting after the end of the maternity leave and she the right to extend the leave for a period of (30) thirty days without pay.
5. The employer shall grant the female worker a maternity leave upon her request at any time, starting from the last day of the month preceding immediately the month, in which she is expected to give birth, and this shall be proven by a certificate issued by the medical entity.
6. Being on a maternity leave or absent from work as mentioned in this Article shall not prejudice the female worker's right to obtain the other leaves.
7. If the female worker works for another employer during the period of her leave authorised in this Article, the original employer may deprive her of her wages for the leave period or redeem what he has paid to her.
8. It is not permissible to terminate the service of the female worker or notify her of the same because of the pregnancy, having a maternity leave or her absence from work in accordance with the provisions of this Article.
9. After returning from maternity leave and for a period of not more than (6) six months from the date of delivery, the female worker shall be entitled to one or two breaks per day to breastfeed her child, provided that the two breaks do not exceed an hour.

Article (31)

► Sick Leave

1. If the worker is infected by a disease not arising from work injury, he shall inform the employer or his representative about his sickness, within a period not exceeding (3) three working days, and submit a medical report on his condition, issued by the medical entity.
2. The worker shall not be entitled to a paid sick leave during the probationary period. However, the employer may grant him a sick leave without pay, based on a medical report issued by the medical entity that stipulates the necessity of granting the leave.
3. After the end of the probationary period, the worker may be entitled to a sick leave of not more than (90) ninety continuous or intermittent days per year, provided that it is calculated as follows:
 - a. The first (15) fifteen days with full pay;
 - b. The following (30) thirty days with half pay;
 - c. The following period unpaid.
4. The worker shall not be entitled to a wage for the sick leave if the sickness resulted from the misconduct of the worker, in accordance with the cases defined by the Implementing Regulation hereof.
5. The employer may terminate the worker's service after finishing his sick leave referred to in this Article if he is unable to return to his work, provided that the worker receives all his financial entitlements in accordance with the provisions of this Decree-Law and its Implementing Regulation.

Article (32)

► Various Leaves

1. The worker shall be entitled to a paid leave in the following cases:
 - a. A bereavement leave of (5) five days, in case of death of the husband or wife and (3) three days in case of death of the mother, father, son, brother, sister, grandson, grandfather or grandmother, starting from the date of death;
 - b. A parental leave for a period of (5) five working days, for the worker (either the father or mother), who has a newly born child, in order to take care of his child and the worker is entitled to such leave for a continuous or intermittent period, within (6) six months from the date of the child birth;
 - c. Any other leaves specified by the Cabinet.

2. The worker may be granted a study leave for a period of (10) ten working days per year for the worker who is enrolled or regularly studying at one of the educational institutions approved in the State, in order to sit for exams, provided that the service term at the employer is not less than two years.
3. The national worker shall be entitled to a sabbatical paid leave to perform the national service, in accordance with the legislation in force in the State.
4. In order to obtain the leaves referred to in this Article, proof of the same shall be provided from the concerned authorities.
5. The Implementing Regulation specifies the provisions for granting and regulating the leaves mentioned in this Article.

Article (33)

► Unpaid Leave

1. The worker may, after obtaining the approval of the employer, have an unpaid leave, other than that referred to herein.
2. The leave mentioned in this Article shall not be included in the worker's service term at the employer or in the period of the contribution in the retirement scheme in accordance with the legislation in force in this regard.

Article (34)

► Absence after the Leave

The worker, who does not return directly to his work without a legitimate reason after the end of his leave, shall not be entitled to his wage for the absence period following the leave end.

Article (35)

► Validity of Notice Period in case of Termination of the Contract during the Leave

If either party to the employment contract wishes to terminate the contract in accordance with the provisions of this Decree-Law and its Implementing Regulation, while the worker is on the leave, the validity of the notice period agreed upon in the employment contract shall not begin, except from the day following the day scheduled for the worker's return from the leave, unless both parties agree otherwise.

Article (36)

► Care, Safety and Professionalism

Establishments shall abide by the provisions contained in Federal Law No. (13) of 2020 regarding public health and all resolutions issued for the implementation thereof and any other legislation issued in this regard. The Implementing Regulation hereof defines the role of the Ministry and the provisions related to the safety, protection and health care of workers.

Article (37)

► Compensation for Work Injuries and Occupational Diseases

1. Under a resolution of the Cabinet, based on the Minister's proposal and in coordination with the concerned authorities, work injuries and occupational diseases, conditions and procedures to be followed in case any of them occur, the obligations of the employer in this regard, the amount of compensation due to the worker in case of permanent full or partial disability, compensation payable to his family in case of his death and the rules for its distribution and amount, shall be defined.
2. The employer shall, in case the worker has a work injury or an occupational disease:
 - a. Bear the expenses of the worker's treatment until he recovers and is able to return to work or proves his disability, in accordance with the conditions, rules and procedures specified by the Implementing Regulation hereof.
 - b. If the work injury or occupational disease prevents the worker from performing his work, the employer shall pay to the worker an amount equivalent of his full wage throughout the treatment period or for (6) six months, whichever is less. If the treatment period exceeds (6) six months, the worker shall obtain half wage for another (6) six months, or until the worker is cured or his disability or death is proven, whichever is earlier.
3. If the work injury or occupational disease led to the death of the worker, his family shall be entitled to compensation equal to the basic wage of the worker for (24) twenty four months, provided that the compensation amount is not less than (AED 18,000) eighteen thousand UAE Dirham and not more than (AED 200,000) two hundred thousand UAE Dirham. The compensation amount is calculated according to the basic wage that the worker was receiving before his death and the compensation is distributed among the eligible beneficiaries of the deceased worker according to the Implementing Regulation hereof, while preserving the rights of the deceased's family in the end of service benefits and any other financial entitlements payable to the worker.

Article (38)

► Cases of the Worker's Non-entitlement of Work Injury Compensation

The worker shall not be entitled to work injury compensation if it is proven through the investigations of the competent authorities that any of the following cases takes place:

1. The worker deliberately caused injury to himself for any reason.
2. The injury took place under the influence of alcohol, narcotics or other psychotropic substances.
3. The injury took place as a result of a deliberate violation of the declared preventive instructions at visible areas in the workplace, as defined by the Implementing Regulation hereof.
4. The injury took place as a result of willful misconduct by the worker.
5. The worker refused, without a serious reason, to be examined or follow the treatment specified by the medical entity.

Article (39)

► Disciplinary Sanctions

1. The employer or his representative may impose to the worker who violates the provisions of this Decree-Law, its Implementing Regulation and resolutions issued for its implementation, any of the following penalties:
 - a. Written notice;
 - b. Written warning;
 - c. Deduction of not less than (5) five days per month from the wage;
 - d. Suspension from work for a period not exceeding (14) fourteen days and non-payment of wage for the suspension days;
 - e. Deprivation from the periodic bonus for a period not exceeding one year, regarding the establishments that adopt the periodic bonus system and the worker is entitled to obtain it according to the provisions of the employment contract or the establishment's regulations;
 - f. Deprivation of promotion at the establishments having a promotion system for a period not exceeding two years;
 - g. Termination of service while preserving the worker's right of end of service benefits.
2. The Implementing Regulation defines the conditions, rules and procedures necessary for the imposition of any of the penalties referred to in Clause (1) of this Article and the mechanism of grievance thereof.

Article (40)

► Temporary Suspension from Work

1. The employer may suspend the worker temporarily from work for a period not exceeding (30) thirty days, in order to conduct a disciplinary investigation with him if the investigation interest so requires, along with suspending half the wage during the suspension period. If the investigation concluded keeping the case, non-violation or punishment of the worker by warning, the worker shall be paid the wage that was suspended during the suspension period.
2. The employer may temporarily suspend the worker from work when he is accused of committing a crime of assault on oneself, money, or crimes related to breach of honour or trust, until a final judgment is issued by the competent judicial authority. His wage shall be suspended for the suspension period. If a judgment is issued for not putting the worker into trial, he was acquitted for absence of felony or the investigation concluded keeping the case due to lack of evidence, he shall be returned to work, along with paying his full suspended wage.

Article (41)

► Some Rules for Imposing Disciplinary Sanctions

1. It is not permissible to impose any disciplinary sanction to the worker for an action committed by him outside the workplace unless it is related to work.
2. It is not permissible to impose more than one disciplinary sanction for a single violation, according to the provision of Article (39) hereof.

Article (42)

► Employment Contract Termination Cases

The employment contract is terminated in any of the following cases:

1. The written agreement of both parties upon its termination;
2. Expiry of the term specified in the contract, unless it is extended or renewed as per the provisions hereof;
3. Based on the wish of either party, provided that the provisions hereof regarding termination of the employment contract and the notice period agreed upon in the contract are observed;

4. The employer's death if the subject of the contract is related to its entity;
5. The worker's death or full permanent inability to work, as proven by a certificate issued by the medical entity;
6. A final judgment issued against the worker by a freedom-restricting penalty for a period of not less than (3) three months;
7. Closing the establishment permanently, in accordance with the legislation in force in the State;
8. The bankruptcy or insolvency of the employer, or any economic or exceptional reasons that prevent the continuation of the project, in accordance with the conditions, rules and procedures specified by the Implementing Regulation and the legislation in force in the State;
9. The worker's failure to fulfill the conditions for renewing the work permit for any reason beyond the control of the employer.

Article (43)

► Employment Contract Termination Notice

1. Either party to the employment contract may terminate the contract for any legitimate reason, provided that the other party is notified in writing and work shall be performed during the notice period agreed upon in the contract, provided that such period is not less than (30) thirty days and not more than (90) ninety days.
2. The employment contract continues to be valid throughout the notice period referred to in this Article and is terminated upon expiry of such period. The worker shall be entitled to his full wage for that period according to the last wage he was obtaining and he shall work during that period if the employer requests the same from him. It may be agreed upon exemption from the notice period condition or reducing its period while preserving all the rights of the worker for the notice period agreed upon in the employment contract, provided that the notice period is the same for both parties unless it serves the interests of the worker.
3. The party who did not abide by the notice period shall pay to the other party compensation, which is called notice period allowance, even if the absence of notification does not cause damage to the other party and the compensation shall be equal to the worker's wage for the full notice period or the remaining part thereof.
4. The notice period allowance is calculated according to the last wage received by the worker for those who obtain their wages on a monthly, weekly, daily or hourly basis, and according to the average daily wage referred to herein for those who obtain their wages on a piecework basis.
5. If the employment contract is terminated by the employer, the worker shall have the right to be absent during the notice period for one working day without pay per week, in order to search for another job. The worker may specify the day of absence, provided that he notifies the employer of the same (3) three days at least before the absence day.

Article (44)

► Cases of the Workers Dismissal without Notice

The employer may dismiss the worker without notice after conducting a written investigation with him and the dismissal decision shall be in writing and justified and the employer or its representative shall hand it over to the worker in any of the following cases:

1. It is proven that the worker impersonated another person, or submitted forged certificates or documents.
2. The worker committed a mistake that resulted in gross physical losses to the employer or the he deliberately damaged the properties of the employer and he acknowledged the same, provided that the latter informs the Ministry of the incident within (7) seven working days from the date of being aware of the occurrence of the incident.
3. The worker violated the instructions of the establishment's by-law related to the safety of work and workers or the workplace, provided that they are written and hung in a visible place and the worker is informed of the same.
4. The worker did not perform his basic duties according to the employment contract and he continued breaching them despite conducting a written investigation with him for this reason and he is notified and warned of dismissal twice if this is repeated.
5. The worker disclosed one work secret related to industrial or intellectual property, which resulted in losses to the employer, missed opportunity or achieving a personal benefit for the worker.
6. The worker is drunk during working hours, is under the influence of narcotics or psychotropic substances, or commits an action breaching the public morals at the workplace.
7. The worker assaults during work, the employer, manager in charge, one of his superiors or colleagues at work, by word, action or any form of assault that is punishable under the legislation in force in the State.
8. The worker is absent without a legitimate reason or excuse accepted by the employer for more than (20) twenty intermittent days during one year or more than (7) seven consecutive days.
9. The worker exploited his position in an illegal way to obtain personal results and gains.
10. The worker joins another establishment without abiding by the rules and procedures prescribed in this regard.

Article (45)

► Cases where the Worker quits Work without Notice

The worker quit work without notice, while retaining his rights upon end of service in any of the following cases:

1. The employer's breach of his obligations towards the worker stipulated in the contract, this Decree-Law or the resolutions issued for its implementation, provided that the worker notifies the Ministry fourteen (14) working days before the date of quitting work and without the employer's rectification and removal of the effects resulting from this breach despite being notified by the Ministry of the same.
2. It has been proven that the employer or its legal representative assaulted the worker, committed violence or harassment against him at work, provided that he informs the competent authorities and the Ministry within (5) five working days from the date on which he was able to report.
3. If there is a grave danger at the workplace that threatens the worker's safety or health, provided that the employer is aware of its existence and does not take any actions that indicate its removal. Then, the Implementing Regulation hereof specifies the rules of the grave danger.
4. The employer instructs the worker to perform a work fundamentally different from the work agreed upon in the employment contract, without obtaining the worker's written consent on the same, except for the necessity cases as per the provisions of Article (12) hereof.

Article (46)

► Termination of Service for Lack of Health Fitness

The employer may not terminate the worker's service due to his lack of health fitness before using the legally accrued leaves. Each agreement to the contrary shall be null and void, even if it is concluded prior to the enforcement of the provisions hereof.

Article (47)

► Illegitimate Termination of the Worker's Service

1. The termination of the worker's service by the employer is unlawful if the termination of the worker's service is due to filing a serious complaint to the Ministry or filing a lawsuit against the employer, whose validity is proven.
2. The employer shall pay fair compensation to the worker estimated by the competent court if it is proven that the termination is unlawful according to Clause (1) of this Article. The amount of compensation shall be defined by taking into account the work type and the amount of damage caused to the worker and his service term. It is required in all cases that the amount of compensation does not exceed the worker's wage for a period of (3) three months, calculated according to the last wage he was obtaining.
3. The provisions of Clause (2) of this Article shall not prejudice the right of the worker to obtain a notice period allowance and end of service benefits payable to him, in accordance with the provisions hereof.

Article (48)

► Continuity of Employment Contracts

The employment contracts in force shall remain valid in the event of a change in the establishment's form or legal status. The new employer shall be responsible for implementing the provisions of those contracts, in addition to executing the provisions of this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation, as of the date of amending the establishment data at the competent authorities.

Article (49)

► Transfer of the Worker after Expiry of the Employment Contract

The worker may, in case of expiry of the employment contract in accordance with the provisions hereof, move to work for another employer as per the conditions and procedures specified in the Implementing Regulation hereof.

Article (50)

► Unlawful Absence from Work

1. If the foreign worker leaves work, for an illegitimate reason, before the end of the contract term, he shall not be granted another work permit to join another job in the State in accordance with the provisions hereof, for a period of one year from the date of the absence from work. It is also not permissible for any other employer, who is aware of the same, to employ him or keep him in his service during that period.
2. The Ministry may exclude some job categories, skill levels or workers from the provision of Clause (1) of this Article, in accordance with the rules and procedures specified by the Implementing Regulation hereof.
3. The employer shall notify the Ministry of the incident of absence from work as per the procedures specified by the Implementing Regulation hereof.

Article (51)

► End of Service Benefits for Full-Time Workers

1. The national worker shall be entitled to end of service benefits at the end of his service, in accordance with the legislation regulating the pensions and social securities in the State.
2. The full-time foreign worker, who completed a year or more in continuous service, shall be entitled to end of service benefits at the end of his service, calculated according to the basic wage as per the following:
 - a. A wage of (21) twenty one days for each year of the first five years of service;
 - b. A wage of (30) thirty days for each year exceeding such period.
3. The foreign worker shall be entitled to a benefit for parts of the year in proportion to the period spent at work, provided that he completed one year of continuous service.
4. The unpaid days of absence from work shall not be included in the calculation of the service term.
5. Without prejudice to the legislation regarding the granting of pensions or retirement benefits to workers in some establishments, the end of service benefits shall be calculated according to the last basic wage the worker was entitled to, with respect to those who receive their wages on a monthly, weekly or daily basis and according to the average daily wage stipulated in the provisions hereof for those who receive their wages on a piecework basis.

6. It is required based on the foregoing that the end of service benefits for the foreign worker in its entirety does not exceed two years' wage.
7. The employer may deduct from the end of service benefits any amounts payable under the law or a judgment, in accordance with the conditions and procedures specified in the Implementing Regulation hereof.
8. The Cabinet may, based on the Minister's proposal and after coordination with the concerned authorities, approve other alternative schemes for the end of service benefits scheme and the issued resolution specifies the conditions, rules and mechanism of contribution in these schemes.

Article (52)

► End of Service Benefits for Workers working in Other Work Patterns

The Implementing Regulation hereof defines the mechanism for regulating end of service benefits for foreign workers based on work patterns, other than the full-time basis, in a manner that enhances the efficiency and attractiveness of the labour market and as required by the interests of both parties to the employment contract.

Article (53)

► Paying the Workers' Entitlements at the End of the Contract Term

The employer shall pay to the worker, within (14) fourteen days from the end date of the contract term, his wages and all his other entitlements stipulated herein and resolutions issued for its implementation, the contract or the establishment's by-laws.

Article (54)*

► Individual Labour Disputes

1. In the event of a dispute between the Employer and the Employee or their beneficiaries under the provisions of this Decree-Law, the dispute shall be submitted to the Ministry for resolution. This application will be examined by the Ministry and the necessary steps will be taken in order to resolve the dispute amicably.
2. The Ministry shall have jurisdiction to resolve the dispute by a decision in all cases involving disputes whose value does not exceed Dhs.50,000 (Fifty thousand dirhams) or whose dispute is concerning either party failing to adhere to an amicable settlement decision previously issued by the Ministry, regardless of the claim's value.
3. In accordance with paragraph No. 2 herein, the decision of the Ministry rendered to adjudicate the dispute shall be regarded as an executive bond, and stamped with the executive formula in accordance with the usual procedure. Both parties to the dispute are entitled to file a lawsuit within (15) fifteen working days following notification or announcement of the decision before the competent court of first instance. The court shall schedule a hearing within three working days of the date the case is filed, notify the parties to the dispute of the hearing date, and decide the case within thirty (30) working days of the filing date. In accordance with this paragraph, the ruling of the competent court of first instance in the subject of the dispute shall be the final ruling. Upon filing the lawsuit, the Ministry's decision referred to in this provision will be suspended.
4. The Ministry shall refer the dispute to the appropriate court if no amicable settlement could be reached within the time frame prescribed in the Implementing Regulation of this Decree-Law. The dispute shall be accompanied by a memorandum summarizing the dispute, the parties' arguments, and the Ministry's recommendations.
5. If the dispute continues, the Ministry may order the employer to pay the employee's wage for a maximum period of (2) two months, provided that the dispute has resulted in the withholding of such payment in accordance with the provisions of this Decree-Law's Implementing Regulation.
6. According to the Minister, other administrative measures or arrangements may be taken against the Establishment in order to prevent turning the current Individual Labour Dispute into a Collective Labour Dispute that might prejudice public interests.
7. Accordingly, the Court shall schedule a hearing within three (3) days to examine the lawsuit, notify the parties of the date of the hearing, and dispose of the matter in a summary manner.
8. No lawsuit pertaining to one of the disputes mentioned in this article shall be accepted without following the procedures and deadlines stipulated in this article.
9. Litigation concerning any of the rights accrued under this Decree-Law may not be considered after two years from the date of termination of employment.

* The article is amended in accordance with the Federal Decree-Law No.(9) of 2024 Revising Some Provisions of Federal Decree-Law No. (33) of 2021 Concerning Labour Relations

Article (55)

► Exemption from Judicial Fees

1. Labour claims shall be exempted from judicial fees at all stages of litigation and execution, as well as the requests filed by workers or their heirs, whose amounts do not exceed (AED 100,000) one hundred thousand UAE Dirham.
2. The Cabinet may, based on the Minister of Justice's proposal, amend the amount referred to in Clause (1) of this Article by increasing or decreasing it as required.

Article (56)

► Collective Labour Disputes

1. If there is a dispute between the employer and all the workers of the establishment or a group of them, and the amicable settlement is not possible, the employer or workers shall submit a complaint to the Ministry as per the rules and procedures specified by the Implementing Regulation hereof.
2. The Minister may impose preventive procedures or measures on the establishment, in order to avoid that the existing collective dispute would cause damage to the public interest.
3. The Cabinet may, based on the Minister's proposal, form one committee or more called (Collective Labour Disputes Committee), so as to consider collective labour disputes that the Ministry is not able to settle amicably. The issued resolution shall define its formation, duties, work system, mechanism of issuing its resolutions and their execution, as well as other provisions related to the proper work progress of the Committee.

Article (57)

► Work Inspection

1. The Ministry's officials, who are authorised by a resolution of the Minister of Justice in agreement with the Minister, shall have the capacity of law enforcement officers to prove the violations to the provisions of this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation. They shall have the right to enter the relevant establishments, examine violations and write the necessary minutes and records.
2. The Implementing Regulation hereof shall specify the procedures for work inspection.

► Penalties

Article (58)

The imposition of the penalties stipulated herein shall not prejudice any severer penalty stated in any other law.

Article (59)

Any person who commits the following shall be punished by a fine of not less than (AED 20,000) twenty thousand UAE Dirham and not more than (AED 100,000) one hundred thousand UAE Dirham:

1. Submitting false information or documents in order to recruit a foreign worker to the State to work therein;
2. Obstructing or preventing an employee assigned to implement the provisions of this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation, attempting or trying to prevent him from performing his job, whether by using force, violence or threatening to use it;
3. Disclosing a work secret, to which he has access, by virtue of his job as a public officer charged with the implementation of the provisions of this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation, even after quitting work.

Article (60)*

1. Individuals who commit the following violations shall be fined a minimum of 100,000 dirhams (one hundred thousand dirhams) and a maximum of 1,000,000 dirhams (one million dirhams):
 - a) Employment of an worker without obtaining a work permit
 - b) Hiring a worker and leaving him/her unemployed
 - c) Utilized work permits for purposes other than those intended
 - d) Closure or discontinuation of an establishment without following the appropriate procedures for settling workers' dues is a violation of this law, the Implementing Regulation, and the Resolutions issued to implement it.
 - e) Employs a juvenile in violation of this law
 - f) A guardian or caretaker who accepts to employ a juvenile in violation of this Decree-Law.
2. Employers who commit violations of laws, regulations, or decisions governing the labour market and appoint an employee or employees in fictitious circumstances will be fined not less than 100,000 (one hundred thousand dirhams) and not more than 1,000,000 (one million dirhams) if such action results in the worker obtaining any benefit or advantage from any ministry, council, fund, authority, or any other government entity under which jurisdiction has been granted by law or decisions issued by the Council of Ministers for regulating the labour market, increasing the

* The article is amended in accordance with the Federal Decree-Law No.(9) of 2024 Revising Some Provisions of Federal Decree-Law No. (33) of 2021 Concerning Labour Relations

competitiveness of those employed in it or assisting him in evading the fulfillment of statutory obligations. The employer may not recover the value of the financial incentives he paid to any of these entities from the employee, and the penalty stipulated in this clause is multiplied by the number of fictitious employees appointed.

3. In accordance with paragraph (2) of this Article, criminal proceedings may only be initiated at the Minister's or his authorized representative's request.
4. If the employer requests a settlement regarding the crime described in paragraph (2) herein, the Ministry may make a settlement prior to a judgment being rendered. The employer shall be required to pay at least 50% of the minimum fine specified for this offense as part of this agreement. Additionally, the employer must refund all financial incentives received by his employees who have been appointed fictitiously. The criminal case will be terminated upon the payment of the reconciliation amount.

► **Article (61)**

Any person who exploits or misuses the electronic powers granted to him to have access to the Ministry's systems or enables others to do so, which would result in disruption in the work procedures or relations, shall be punished by imprisonment for a period of not less than one year and a fine of not less than (AED 200,000) two hundred thousand UAE Dirham and not more than (AED 1,000,000) one million UAE Dirham, or one of these penalties.

► **Article (62)**

The fine imposed in accordance with the provisions hereof regarding the employers, would vary according to the multiplicity of workers who committed violations, with a maximum of (AED 10,000,000) ten million UAE Dirham.

► **Article (63)**

Any person, who violates any other provision of this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation, shall be punished with a fine of not less than (AED 5,000) five thousand UAE Dirham and not more than (AED 1,000,000) one million UAE Dirham.

► **Article (64)**

In case of repeating any of the violations mentioned in this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation, before the lapse of one year since the perpetrator of a similar violation has been punished, then the perpetrator shall be punished by imprisonment, along with doubling the fine stipulated herein or one of these penalties.

Article (65)

► Final Provisions

1. The rights stipulated herein shall represent the minimum rights for workers and the provisions hereof shall not prejudice any of the rights granted to the worker under any other legislation, agreement, acknowledgment, regulation or employment contract, which would grant the worker rights that are more useful than the rights established under the provisions hereof.
2. The employer or worker may not misapply the provisions of this Decree-Law, its Implementing Regulation and the resolutions issued for the implementation of its provisions and they may not commit an action that would limit the freedom of others, the freedom of other workers or employers to achieve any interest or viewpoint adopted, which contradicts freedom of work or the competence of the authority concerned with settling the disputes.
3. Each provision contradicting the provisions hereof, even if it was existing prior to its enforcement, shall be deemed null and void, unless it is more beneficial to the worker. Each discharge, reconciliation or waiver of the rights arising for the worker hereunder shall be null and void if it violates its provisions.
4. The employer may develop and implement programmes or regulations at the establishment, which are more beneficial to the worker than what is prescribed under the provisions of this Decree-Law and its Implementing Regulation. If these programmes and regulations conflict with the provisions hereof, the conditions more useful and beneficial for the worker shall be applied.
5. The employer may not review the terms and conditions of the employment contract in force with the worker before the issuance of this Decree-Law, in order to apply the provisions hereof, unless those amendments are intended to achieve a greater advantage and benefit for the worker. The employment contract can be updated after its expiry as per the provisions hereof.
6. The employer or worker may terminate the employment contract with an undefined term, which was concluded before the enforcement of this Decree-Law, for a legitimate reason, after notifying the other party in writing for a period of not less than (30) thirty days if the service term is less than (5) five years, a period of not less than (60) sixty days if the service term is more than (5) five years and a period of not less than (90) ninety days if the service term is more than (10) ten years.
7. The amounts payable to the worker or his family members in accordance with the provisions hereof shall have a concession over all the funds of the employer and they shall be paid immediately after settling the amounts due to the public treasury and the legal alimony ruled to the wife and children.

Article (66)

► Approved Language

1. The Arabic language is the language approved in all records, files, data, forms and others that are stipulated in this Decree-Law, its Implementing Regulation and the resolutions issued for its implementation.
2. The employer shall use the Arabic language in concluding contracts with the workers, in writing and publishing instructions and circulars which it shall issue, provided that there shall be another language, beside the Arabic, which is understood by the non-Arabic speaking worker, taking into account that the text in the other language matches the Arabic text. In case of difference, the Arabic text shall prevail.

Article (67)

► Calculation of Periods and Dates

The calculation of the periods and dates stipulated herein shall be based on the Gregorian calendar. The Gregorian year in applying the provisions hereof shall include (365) three hundred and sixty-five days, while the month represents (30) thirty days.

Article (68)

► Adjustment of Situations

1. The provisions hereof shall apply to employment contracts of undefined terms, which are concluded in accordance with Federal Law No. (8) of 1980 mentioned above.
2. The employers shall adjust their situations and convert employment contracts with undefined terms to fixed-term employment contracts, as per the conditions, rules and procedures contained herein during one year from the date of its enforcement. The Minister may extend this period for other periods as required by the public interest.
3. Subject to the provision of Clause (2) of this Article, the employer may calculate the end of service benefits in accordance with the provisions of the employment contract with an undefined term stated in Federal Law No. (8) of 1980 indicated above.

Article (69)

► Grievance against the Ministry's Resolutions

Both parties to the employment relationship may file a grievance against the resolutions issued by the Ministry in accordance with the procedures specified in the Implementing Regulation hereof.

Article (70)

► Powers of the Cabinet

For the purposes hereof, the Cabinet shall be concerned with the following:

1. Approving the conditions, rules and procedures for classifying the establishments subject to the provisions hereof, and the privileges offered for each category of these establishments;
2. Approving the conditions, rules and procedures for classifying the skill levels of workers in the labour market subject to the provisions hereof and the privileges provided for each level;
3. Approving the conditions, rules and procedures for employing the students of accredited educational institutions in the State, in a way that enhances the efficiency of the labour market and the competitiveness of workers and allows the employers to benefit from human potentials;
4. Adopting the conditions and procedures for employing persons with disabilities (people of determination) in the State in the categories appropriate for them and their physical, technical and intellectual capabilities, as well as defining their rights, duties and privileges provided for them, in a way that contributes to empowering this category, allowing them to participate in the development process and motivating the employers to employ them and provide all means of support and empowerment for them;
5. Approving policies, legislation and regulations that organise the labour market in the State, enhancing the participation of State nationals in the labour market and motivating the employers to solicit and employ nationals;
6. Issuing resolutions that would limit the repercussions of any general exceptional circumstances faced by the State in the work sector in the State;
7. Changing the periods, percentages, or values mentioned herein, according to the variables and needs of the labour market and what is required by the public interest; and
8. Defining the fees necessary to implement the provisions of this Decree-Law and its Implementing Regulation.

Addition (71)

► The Ministry's Powers

For the purposes hereof, the Ministry shall be concerned with the following:

1. Proposing the policies, strategies and legislation for the following:
 - a. Encouraging and motivating the establishments to invest in training and empowerment of workers, as well as raising their level of skill, efficiency and productivity;
 - b. Adopting modern and technological means and soliciting the best competencies according to the requirements of the labour market in the State to increase productivity;
 - c. Training the students of public and higher education institutions accredited in the State.
2. Establishing unified forms for the regulations of employment relationships at the establishments and issuing rules and mechanisms for their adoption, in order to serve the interest of the worker and employer.

Article (72)

► Implementing Regulation

The Cabinet, based on the Minister's proposal, issues the Implementing Regulation for the provisions hereof.

Article (73)

► Abrogation

1. Federal Law No. (8) of 1980 regulating employment relationships shall be abrogated.
2. Each provision that violates or contradicts the provisions hereof shall be abrogated.
3. The resolutions, regulations and rules in force prior to the enforcement of the provisions hereof shall remain in force, in a way not contradicting its provisions, until they are replaced in accordance with the provisions hereof.

Article (74)

► Publication and Enforcement of the Decree-Law

This Decree-Law shall be published in the Official Gazette and shall be enforced as of 2 February 2022.

His Highness Sheikh Khalifa bin Zayed Al Nahyan
President of the United Arab Emirates State

Issued by us at the Presidential Palace in Abu Dhabi:
On: 13 Safar 1443 AH
Corresponding to: 20 September 2021 AD

**Cabinet Resolution No.92 Of 2022
Concerning
Licensing and Regulating The Work of
Domestic Workers Recruitment Offices**

CABINET RESOLUTION NO.92 OF 2022

CONCERNING

LICENSING AND REGULATING THE WORK OF DOMESTIC WORKERS RECRUITMENT OFFICES

His Excellency Minister of Human Resources and Emiratization:

- Having reviewed the Federal Law No.(1) of 1972 on the competencies of the Ministries and Powers of the Ministers and the amendments thereof
- Federal Law No. 10 of 2017 concerning domestic workers
- Federal Decree-Law No. 33 of 2021 concerning Regulation of Labour Relations
- Cabinet Resolution No. (21) of 2020 concerning Service Fees and Administrative Fines at the Ministry of Human Resources and Emiratization
- Cabinet Resolution No. 22 (of 2019) regarding the executive regulations of the Domestic Workers Law.
- Cabinet Resolution No. 819 of 2017 concerning Service Centers (Tadbeer)
- Cabinet Resolution No. 48 of 2022 regulating labor inspection procedures

Has resolved:

ARTICLE (1)

► Definitions

The same definitions contained in Federal Decree No. 10 of 2017 and its executive regulations issued by Cabinet Resolution No. 22 of 2019, will be adopted to define any terms contained herein.

ARTICLE (2)

► Conditions for Licensing Domestic Workers Recruitment Offices

In order to acquire a license to practice the activity of support workers recruitment Agency, the conditions set forth in Article (3) of Federal Law No. (10) of 2017 herein and Articles (3) ,(2) and (4) of its executive regulation must be met , in addition to the following:

1. The Applicant must provide the Ministry with a bank guarantee for a value not less than AED 500,000/- (five hundred thousand dirhams) throughout the period of permit validity provided that the guarantee is automatically renewable. The Applicant may provide a security deposit as an alternative to the said guarantee in accordance with the means set by the Ministry. The Ministry may, according to the risk factor, demand an increase in the value of Bank Guarantee. Furthermore, the Ministry may allocate all or part of the guarantee or the security deposit stipulated in this Article to settle any sum that may be payable by the Office to the Ministry, employer or the worker or as a result of its failure to perform its obligations under this Resolution or abide by the instructions and Decisions issued hereunder. The recruitment office must complete the shortfall in the value of the guarantee within 30 days from the date of its occurrence.
2. The License Applicant must submit a credit report that reflects its financial status, whether it's a sole establishment or partners in a legal entity, provided that this report is issued by one of the competent authorities in the state.
3. The License Applicant or any of the partners in the legal entity applying therefor may not be an employee of the Ministry in relevant operational sectors or a first-class relative of such employee, including husband and wife.
4. The License Applicant must have an office with a clearly defined address for practicing recruitment business. An exception to this is when the Ministry permits the license applicant to practice his activities electronically in accordance with the mechanisms specified in the procedures manual in this regard.

ARTICLE (3)

► Licensing of Recruitment Offices

1. The license is issued to the Domestic Workers Recruitment Office with the approval of the Minister or his authorized deputy.
2. The license shall be renewed annually after paying the prescribed fee, provided that the Office continues fulfilling the requirements of the license.
3. The Office whose license has expired and has not been renewed within 30 days will be violating the provisions contained herein pertaining to exercise the work of the Agency, and will be subjected to legally prescribed fines.

ARTICLE (4)

► Branches of The Recruitment Office

The Office may open branches in the same emirate where it is licensed to operate, or in any other emirate in accordance with the requirements of local licensing, subject to the approval of the Ministry after evaluating and reviewing the amount of the Bank Guarantee or the Security Deposit compared to the volume of activity.

ARTICLE (5)

► Office Obligations

In addition to the obligations contained in Federal Law No.10 of 2017 specified by the implementing bylaws, the Recruitment Office shall abide by the following:

a. Obligations towards domestic workers:

1. Provide the worker with a decently equipped temporary accommodation and daily meals (whether registered under the office or mediated by the office, or those returned to the office for any reason), as long as the latter needs to stay at the office until he/she has a place to reside in accordance with the rules and regulations regulating labor accommodations and any other requirements set by the Ministry.
2. In case of temporary employment, implement, at all times, all legally stipulated obligations on any employer towards the employee, except for what has been excluded by special text in this Resolution or in the other Decisions issued by the Ministry. The Office may not,
3. in any way, fail to implement these obligations due to the employer's failure to fulfill its obligations with the Agency, and it shall be the main party responsible in all cases, for the implementation of these obligations.

b. Obligations towards Recruitment Agencies Outside The Country:

1. Meet and implement all requirements and controls contained in the memorandum of understanding signed by the Ministry and the country in which the Agency is located, and to disclose to the Ministry the number and data of domestic workers allocated to the office.
2. Ban dealing with any employment agency, office or person, or with any unlicensed entity outside the country. In all cases, the Ministry may, for the reasons it deems appropriate, prevent the office from dealing with any employment agency, person or any entity outside the country.

c. Office obligations towards the Ministry:

1. Adhere to strict confidentiality regarding all data and information that it has access to in the course of its activity, and refrain from using such data and information, publish it or share it with other parties without the approval of the Ministry.
2. Abide by the prescribed government service fees set by the Council of Ministers for the services it provides to customers and refrain from acquiring any additional fees.
3. Provide domestic workers services, including the provision of service packages that are circulated by the Ministry and in accordance with the approved fees.
4. The office may not provide its services to employers of an establishment that satisfied the conditions of suspending establishments provided for in the Ministry's applicable systems except in the case of temporary employment and with the approval of the Ministry.
5. Comply with all terms of the Service Level Agreement concluded with the Ministry, to ensure the quality of service delivery.

ARTICLE (6)

► Obligations Of The Beneficiary Towards The Domestic Worker

The beneficiary shall be obligated to the domestic worker as follows:

1. Ensure all proper occupational health and safety conditions for the worker, in line with the nature of the work.
2. Refrain from assigning the worker with any jobs or services that fall outside the general framework of the work or service agreed upon with the Office.
3. Desist from occupying the worker for more hours than the hours agreed upon with the office.
4. Notify the Ministry and Agency immediately of any work accidents or injuries the worker sustains.

ARTICLE (7)

► Cases For Suspension Or Cancellation Of Office Licensing

The Minister may revoke the license of an office or temporarily suspend it, in any of the following cases:

1. Failure to meet any of the conditions upon which his license is issued, including submitted pledges and statements or if the Office fails to adhere to the new decisions issued by the Ministry.
2. If any of the documents or data submitted for licensing purposes are found to be false.
3. If the Office violates the provisions of this Resolution, the regulations and instructions pertaining thereto, or related legislation applicable in the Ministry.
4. If the Office commits any act involving some form of forced labor or human trafficking.

ARTICLE (8)

► Procedures for Suspending or Revoking Office Licensing

If the Office license is suspended or canceled hereunder, the following actions shall be taken:

1. The Office shall be notified by the suspension or cancellation decision using the notification methods applicable in the Ministry, along with the reasons for such decision.
2. Collection of all fines payable and due by the Office up to the date of cancellation.
3. Owners of cancelled licenses will be instructed to settle the conditions of their workers within 15 fifteen days from the date of the license cancellation decision.
4. Obligate the office owner to fulfill all his obligations towards workers and business owners throughout the suspension period, and refrain from concluding any new contracts until the reasons for the suspension are rectified and lifted.
5. Authorities licensing business activities in the local government (economic departments and municipalities) and departments of residency and foreigners' affairs shall be notified to take their actions according to the suspension or cancellation decision, including the cancellation of any license, permits or authorizations issued to the cancelled Office.
6. In all cases, the bank guarantee or security deposit under Article (2) herein will not be reimbursed until all amounts payable by the Office are collected.

ARTICLE (9)

► **Reporting Violations**

The Inspectors of the Ministry are responsible for conducting inspections of places of work and workers' accommodations in order to curb any violations to the peremptory norms of the decisions issued to execute the aforementioned law and all relevant legislation in force.

► **ARTICLE (10)**

The Undersecretary for Human Resources Affairs shall issue a procedures manual, necessary to enforce the provisions of this law.

► **ARTICLE (11)**

1. Cabinet Resolutions No. 819 of 2017 regarding service centers (Tadbeer) shall be repealed and any provision inconsistent with the provisions of this Law is hereby repealed.
2. Any office who has been issued a license in accordance with Cabinet Resolutions No. 819 of 2017 hereof, must fulfill all the requirements contained in this decision upon the renewal of the license.

► **ARTICLE (12)**

This Resolution shall be published in the Official Gazette and shall come into force from the date of its issuance.

Dr. Abdulrahman Abdul Mannan Al-Awar
Minister of Human Resources and Emiratization
(Seal and signature)

Issued on 2022-02-28

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